Miami County Common Pleas Court
05/05/2023 04:33 PM
Shawn M. Peeples
Clerk of Courts

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER, Plaintiff-Appellant vs. OHIO'S HOSPICE, INC. AND JOHN LOGUE, ADMINISTRATOR, OHIO BUREAU OF WORKERS' COMPENSATION, Defendants-Appellees.	:	CASE NO. 23-117 JUDGE JEANNINE N. PRATT ANSWER OF DEFENDANT-APPELLEE, OHIO'S HOSPICE, INC.

Now comes the Defendant-Appellee, Ohio's Hospice, Inc. ("Defendant"), by and through counsel, and for its Answer to the Complaint of the Plaintiff, hereby admits, denies and avers as follows:

FIRST DEFENSE

1. Defendant admits the allegations in paragraphs 2, 3, 4, 6, 9 and 10 of the Complaint.

2. Defendant denies the allegations in paragraph 5 of the Complaint.

3. Defendant admits that this action was commenced in Miami County by the Plaintiff, who filed a Notice of Appeal with this Court under the provision of Ohio Revised Code Section 4123.512, but Defendant denies that it initiated this action before the Court, and

otherwise denies for lack of knowledge the remaining allegations contained in paragraph 1 of the Complaint.

4. Defendant admits the Plaintiff's case was presented at hearing before a District Hearing Officer in Fairborn, Ohio on September 28, 2022, and that an order thereafter was mailed to the parties on October 6, 2022, but Defendant denies that the full text and import of that order is presented in Paragraph 7 of the Complaint.

5. Defendant admits that Plaintiff alleges that she timely filed an appeal to the Staff Hearing Officer, which came on for hearing in Fairborn, Ohio on January 20, 2023 and that an order was mailed to the parties on January 25, 2023, but Defendant denies that the full text and import of that order is presented in Paragraph 8 of the Complaint.

SECOND DEFENSE

6. Defendant hereby denies each and every other allegation of the Complaint not otherwise specifically admitted herein.

THIRD DEFENSE

7. Defendant states that Plaintiff's Complaint is barred, in whole or in part, by the applicable statutes of limitations.

FOURTH DEFENSE

8. Defendant states that Plaintiff's Complaint fails to state a claim upon which relief can be granted, and further fails to declare an injurious event that occurred at work and/or a diagnosis for any such event that occurred at work.

FIFTH DEFENSE

9. Defendant states that this honorable Court is without jurisdiction to hear this matter and/or that improper venue has been selected.

WHEREFORE, Defendant respectfully requests that Plaintiff be denied access to the benefits of the Workers' Compensation System of the State of Ohio, in Claim No. 22-155661 and for specific condition(s) requested and adjudicated by the Industrial Commission of Ohio in advance of this appeal, and that Defendant be reimbursed its costs and reasonable attorney fees in the defense of this matter.

Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: */s/ David Korte*

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ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

CERTIFICATE OF SERVICE

I hereby certify that on May 5, 2023, a copy of the foregoing Answer of Defendant-Appellee, Ohio's Hospice, Inc., to Plaintiff's Complaint, was filed electronically. Notice of this filing will be sent to all parties by operation of the Court's ECF System and copies will be mailed via U.S. Mail to those parties to whom electronic notice has not been sent. Parties may access the filing through the Court's system.

/s/ David Korte
David C. Korte (0019382)

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